



STATE OF MICHIGAN ENTERPRISE PROCUREMENT

Department of Technology, Management, and Budget
320 S. Walnut Street 2nd Floor Lansing, MI 48933
P.O. BOX 30026 LANSING, MICHIGAN 48909

CONTRACT CHANGE NOTICE

Change Notice Number **6**

to

Contract Number **MA210000001333**

CONTRACTOR	CISCO SYSTEMS INC
	170 West Tasman Drive
	San Jose CA 95314
	Gigi Feril
	408-424-0712
	nvp-help@cisco.com
	CV0063483

STATE	Program Manager	Meghan Penny	DTMB
		(517) 282-1272	
		PennyM2@michigan.gov	
	Contract Administrator	Lauren Stempek	
		(517) 243-4008	
		stempekL@michigan.gov	

CONTRACT SUMMARY				
Data Communications Products and Services				
INITIAL EFFECTIVE DATE	INITIAL EXPIRATION DATE	INITIAL AVAILABLE OPTIONS	EXPIRATION DATE BEFORE	
August 10, 2021	September 30, 2024	2 - 12 Months	September 30, 2026	
PAYMENT TERMS		DELIVERY TIMEFRAME		
n/a		Net 45		
ALTERNATE PAYMENT OPTIONS			EXTENDED PURCHASING	
☐ P-Card ☐ Direct Voucher (PRC) ☐ Other			☒ Yes ☐ No	
MINIMUM DELIVERY REQUIREMENTS				
n/a				
DESCRIPTION OF CHANGE NOTICE				
OPTION	LENGTH OF OPTION	EXTENSION	LENGTH OF EXTENSION	REVISED EXP. DATE
☐		☐		
CURRENT VALUE	VALUE OF CHANGE NOTICE	ESTIMATED AGGREGATE CONTRACT VALUE		
\$75,000,000.00	\$0.00	\$75,000,000.00		
DESCRIPTION				
Effective 8/2/2024, this contract is hereby amended to:				
- Replace the existing Attachment 2, State of Michigan, IT Asset Management (ITAM) Requirements, with the attached "Attachment 2 - State of Michigan ITAM Requirements (Revised 3/5/2024)." - Replace the existing Attachment 5 - State of Michigan Service Level Agreement, with the attached "Attachment 5 - State of Michigan Service Level Agreement", that removes Service Metric #A4 (ITAM documentation accuracy) and associated Service Level Credits.				
All other terms, conditions, specifications and pricing remain the same. Per contractor and agency agreement, and DTMB Central Procurement Services approval.				

**Program Managers
for
Multi-Agency and Statewide Contracts**

AGENCY	NAME	PHONE	EMAIL
DTMB	Meghan Penny	517-282-1272	PennyM2@michigan.gov

FOR THE CONTRACTOR:

CISCO SYSTEMS INC

Company Name

Authorized Agent Signature

Authorized Agent (Print or Type)

Date

FOR THE STATE:

Signature

Name and Title

DTMB Central Procurement Services

Agency

Date

Attachment 2 - State of Michigan ITAM Requirements (Revised 3/5/24)

ASSET REPORTING

Contractor must ensure the Contractor and/or all Fulfillment Partners provide the following reports:

- **Shipping Report - Weekly (when there is a shipment)**
- **Purchase Report - Quarterly**
- **Equipment Replacement Report - Monthly**

The format of these reports must be as stated unless agreed upon by the Contractor and DTMB.

Weekly Shipping Report

- a. The Fulfillment Partner must provide a weekly shipping report directly to the State of the items shipped to Depot, or to any State of Michigan Facility, once a Delivery Order/Purchase Order is received by a Fulfillment Partner.
- b. This report to be in Excel format and sent to the State as directed by the Contract Administrator. The format should stay the same unless agreed to by the Contractor and DTMB.
- c. The required fields are shown below:

Column Name	Description	Example
Ship to	e.g. General Services, Lake Michigan Hosting Center, Lake Superior Hosting Center, Hannah Building, Direct Ship. This would be a field with a provided dropdown menu.	General Services
Address	The street address where the product was delivered	7461 Crowner Dr.
Tracking Number	The shipping company's tracking #	V1234568.00
ServiceTag	This is manufacturer serial #.	AK00344417
State PO	The purchase order number issued by the state	PO.171.180000009153, DOIT.171.180000000686
Agency	The Agency Name from the list below: Attorney General Civil Service Commission Department of Environment, Great Lakes, and Energy Department of Human and Health Services	Department of Environment, Great Lakes, and Energy

	Department of Insurance and Financial Services Department of Technology, Management and Budget Department of Military & Veterans Affairs Department of Natural Resources Department of Licensing and Regulatory Affairs Department of Agriculture and Rural Development Department of Civil Rights Department of Education Department of Corrections Department of State Department of Transportation Department of Labor and Economic Opportunity Department of Treasury Department of Lifelong Education, Advancement, and Potential Governor's Office Michigan State Police	
Category	Limited to one of the following Workstation Monitor Printer Peripheral Network Hardware Router Switch Server Storage Other	Server
Model	Manufacturer Model	SPARC T7-4 SERVER: BASE
Qty	Quantity purchased	2
Price	The unit price of one item	\$26,953.71
ShipDate	The date when the equipment is shipped	5/11/2017
Mfg Part #	The manufacturers part number	7107525
Cust PO #	(Optional) The vendor's internal PO when ordering from other suppliers	
Shipment Carrier	e.g. UPS, FedEx, etc.	UPS
Agency Code	Agency Code table: 111 Attorney General 761 Department of Environment, Great Lakes, and Energy 491 Department of Human and Health Services 651 Department of Insurance and Financial Services 171 Department of Technology, Management and Budget	761

	511 Department of Military & Veterans Affairs 751 Department of Natural Resources 011 Governor's Office 641 Department of Licensing and Regulatory Affairs 191 Civil Service Commission 791 Department of Agriculture and Rural Development 151 Department of Civil Rights 313 Department of Education 472 Department of Corrections 231 Department of State 591 Department of Transportation 551 Michigan State Police 186 Department of Labor and Economic Opportunity 271 Department of Treasury 321 Department of Lifelong Education, Advancement, and Potential	
Order Number	(Optional) The vendor internal order number	
Expected Delivery Date	The date the equipment expected to deliver	5/19/2017
Warranty Tag	(Optional) The tag number used for warranty services (could be the same as the serial number)	
Reporting Vendor	Vendor who provided this purchase report	Presidio
Manufacturer Name	The name of the company that manufactures the product	Cisco

Quarterly Purchase Report

- The Fulfillment Partner must provide a quarterly purchase report of items shipped to the State of Michigan.
- This report must be in Excel format and sent to the State as directed by the Contract Administrator.
- The reports must detail the information below on an individual PO line item basis. Each asset with serial numbers to be listed on individual lines of the reports.

Column Name	Description	Example
Agency Cd 1	Code Agency Name ---- ----- 111 Attorney General 761 Department of Environment, Great Lakes, and Energy 491 Department of Human and Health Services 651 Department of Insurance and Financial Services 171 Department of Technology, Management and	511

	Budget 511 Department of Military & Veterans Affairs 751 Department of Natural Resources 011 Governor's Office 641 Department of Licensing and Regulatory Affairs 191 Civil Service Commission 791 Department of Agriculture and Rural Development 151 Department of Civil Rights 313 Department of Education 472 Department of Corrections 231 Department of State 591 Department of Transportation 551 Michigan State Police 186 Department of Labor and Economic Opportunity 271 Department of Treasury 321 Department of Lifelong Education, Advancement, and Potential	
Agency	The Agency Name from the list above.	Department of Military & Veterans Affairs
CLIENTPO	The purchase order number issued by the state	PO.171.180000009153, DOIT.171.180000000686
InvNum	Vendor Invoice Number	6078856
Description	The model/description of the product	100G and 40GBASE SR-BiDi QSFP Transceiver, LC, 100m OM4 MMF
Price	The unit price of one item	\$26,953.71
BiosAssetTag	The serial number of the asset	3NLGR73
Service Contract End Date	The date that the warranty ends	2/2/2025
Invoice Date	The date of the invoice	2/2/2021
Ship Date	The date the product was shipped	2/2/2021
Reporting Vendor	Vendor who provided this purchase report	WWT

Monthly Equipment Replacement Report

- a. The Contractor will provide a monthly report that details all the IT equipment that has been replaced under the Contractor's service/maintenance contracts from the previous month. The Contractor will work with the State to provide details for any warranty outside of covered service/maintenance contracts after notification by the State.
- b. This report must be in Excel format and sent to the State as directed by the Contract Administrator.
- c. The required fields will be agreed upon by both the Contractor and the State of Michigan.

PACKAGE LABELS AND PACKING SLIPS REQUIREMENTS

Cisco and Fulfillment Partners will make reasonable efforts to ensure all package labels and packing slip requirements are met. In the event such efforts do not meet such requirements, Cisco and its Fulfillment Partners will work with the State of Michigan to find a mutually agreeable solution.

BAR-CODING

Bar-Coded Information – The following information must be on the vertical face of packages containing IT assets in a standard bar code format:

- a. Model Number(s)
- b. Serial Number(s)

The data above for each field must be in standard print beside/above/below each bar code.

BOX LABEL (NO BAR CODE)

- a. The Fulfillment Partner must manually enter the State of Michigan's Purchase order number in SIGMA format when entering the order in the Shipping & Install section, Carton notes **AND** Shipping/Package notes sections for it to appear on the label: State of Michigan Purchase Order Number (SIGMA format: e.g. DOIT1.171.220000003343).

PACKING SLIPS

Contractor and/or Fulfillment Partner must provide a packing slip for each physical shipment. Each shipment box will exclusively contain assets from a single State Purchase Order. The packing slip must display:

- A. The Fulfillment Partner must manually enter the State of Michigan's Purchaser's Name (Procurement Liaisons name) when entering the order in the Shipping & Install section, Shipping/Package notes sections for it to appear on the packaging slip.
- B. Ship to address
- C. Document Generated Date
- D. Shipped from (Contractor, e.g. Cisco or Fulfillment Partner Name)
- E. Shipping Carriers Name
- F. Total Number of Packages
- G. The Fulfillment Partner must manually enter the State of Michigan's Purchase order number in SIGMA format when entering the order in the Shipping & Install section, Carton notes **AND** Shipping/Package notes sections for it to appear on the packing slip: State of Michigan Purchase Order Number (SIGMA format: e.g. DOIT1.171.220000003343).
- H. Item / Part Number

- I. Line item description
- J. Quantity ordered
- K. Quantity included in shipment (of total quantity ordered)
- L. Equipment serial number(s) (major line items only)

Attachment 5 – State of Michigan Service Level Agreement

CONTRACT PERFORMANCE - METRICS

The State and the Contractor will monitor performance throughout the course of this Contract.

The Contractor will monitor the performance and coverage of all warranty and maintenance services. In addition to monitoring of repair cases, the Contractor will meet regularly with Fulfillment Partners to discuss performance metrics, issues affecting the industry or clients, new initiatives, and new innovations in technology. The primary focus is on making sure service commitments are met or exceeded.

Contractor will provide the Services according to the metrics detailed in the Service Level Table below. Metrics will be completed with the following operational considerations:

Service Level Table		
I: Service Metric #	II: Service	III: State Minimum Metric
A1	Accuracy of CISCO Hardware and Software	The State expects 100% accuracy of CISCO Hardware and Software delivered as defined in the bill of materials provided by CISCO or its Fulfillment Partners.
A2	Warranty & Maintenance: critical (hardware)	4-hour response, 24x7 when the State has purchased '4-hour response, 24x7' response time for a specific offer available under the Contract
A3	Warranty & Maintenance: Standard (hardware)	Next Business Day response when the State has purchased 'Next Business Day' response time for a specific offer available under the Contract.

SERVICE LEVEL CREDITS

Contractor will report quarterly following the execution of the Participating Addendum, on all Service Metrics defined above ("Service Level Report"). Such report must be in electronic or such other form as the State may approve in writing and shall include for each Service Metric, at a minimum: (a) the actual performance for each Service Metric relative to the Minimum Metric Requirement; (b) the Service Level Credit due to the State for each Service Metric (if any); and (c) if Service Level Credits are due to the State, a description of the cause of the performance issues and any corrective actions to resolve the issues.

Service Level Credits. Failure to achieve any of the State Minimum Metric requirements identified in the table above will constitute a Service Level Failure for which Contractor will issue to the State the corresponding service credits set forth in the Service Level Credits Table below in accordance with payment terms set forth in the Contract

Service Level Credits Table			
I: Service Metric#	II: Service	III: Quarterly SLA/SLT (% of purchase orders)	IV: Service Level Credit
A1	Accuracy of CISCO Hardware and Software	Less than or equal to 95%	10% of all inaccurate line items.
A2	Warranty & Maintenance: critical(hardware)	Less than or equal to 90%	\$500 per late response based on service level target
A3	Warranty & Maintenance: Standard(hardware)	Less than or equal to 90%	\$500 per late response based on service level target

Compensatory Purpose. The parties intend that the Service Level Credits constitute compensation to the State, and not a penalty. The parties acknowledge and agree that the State's harm caused by Contractor's delayed delivery of the Services would be impossible or very difficult to accurately estimate as of the Effective Date, and that the Service Level Credits are a reasonable estimate of the anticipated or actual harm that might arise from Contractor's breach of its Service Level obligations.

Issuance of Service Credits. Contractor shall, for each quarterly reporting period, issue to the State, together with Contractor's Service Level Report for such period, a written acknowledgment setting

forth all Service Level Credits to which the State has become entitled during that invoice period. Contractor shall pay the amount of the Service Level Credit as a debt to the State within fifteen (15) Business Days of issue of the Service Level Credit acknowledgment, provided that, at the State's option, the State may, at any time prior to Contractor's payment of such debt, deduct the Service Level Credit from the amount payable by the State to Contractor pursuant to such invoice.

Additional Remedies for Service Level Failures. Contractor's repeated failure to meet the Service Levels set out in the Service Level Table will constitute a material breach under the Contract. Without limiting the State's right to receive Service Level Credits under this Section, the State may terminate this Contract for cause in accordance with terms of the Contract.